HON'BLE SRI JUSTICE C.PRAVEEN KUMAR
AND
HON'BLE SRI JUSTICE B. KRISHNA MOHAN

CIVIL MISCELLANEOUS APPEAL No.76 of 2021

JUDGMENT: *(per Hon'ble Sri Justice B.Krishna Mohan)*

This civil miscellaneous appeal arises against the order in I.A.No.1059 of 2019 in GWOP No.61 of 2019 on the file of IV Additional District Judge, Kakinada, East Godavari District, dated 08.12.2020, granting interim custody of the minor child (Sanka Akshaya) to the petitioner therein with certain conditions.

2. The appellant herein is the respondent in IA and the respondent in the GWOP before the court below. The respondent herein is the petitioner in the IA and the petitioner in the GWOP before the court below.

3. Heard the learned counsel for the appellant herein and the learned counsel for the respondent herein.

4. The respondent herein is a legally wedded wife of the appellant herein and she filed the above said GWOP No.61 of 2019 against the appellant herein before the IV Additional District Judge, Kakinada, under Sections 7 and 25 of the Guardians and Wards Act, 1890 (for short, "the Act") read with Section 151 of the Code of Civil Procedure, 1908 seeking custody of the minor child (Akshaya Sanka) and such other reliefs as may be granted by the court below.

5. Pending the said OP, she filed an IA No.1059 of 2019 in it before the court below seeking an interim custody of her minor daughter Sanka Akshaya, who born on 05.04.2018 out of their wedlock at Grand Rapids, State of Michigan, County of Kent. It is their case that the marriage between the appellant herein and the respondent herein took place on 08.10.2009 at Kakinada as per Hindu rights and customs. Out of their wedlock, a female baby by name Sanka Akshaya was born as stated above in the State of Michigan, County of Kent, USA.

6. The backdrop of the case is that after the marriage she joined her husband in USA and allegedly he started harassing her for additional dowry of Rs.One crore, as she could not arrange the same she was ill treated, beaten and abused indiscriminately, made to resign her job forcibly, got her VISA converted into a dependant VISA, after child was born she was compelled to sign on divorce papers for submission in US Court, gave life threat to the baby and herself, made false promise to the effect that baby's passport was getting ready for travel to India along with her and in the last minute she was alone sent to India on the pretext that he would bring the baby later on getting the passport and VISA. Thus he has cheated her. As she is on a dependant VISA and no other supporting documents are with her and due to financial constraints she could not go back to USA to secure the custody of her minor child. Hence, she approached the court below in the above said OP seeking custody of the child and filed the above said IA for interim custody of the child pending OP.

7. He opposed her averments and contentions by filing a counter before the court below in the said IA. He alleged that in the month of July, 2018 her parents and herself insisted him for giving divorce as she is not happy with the marriage and he tried to convince them but they did not heed his words, then he filed a divorce case in USA in the month of October, 2018, on three occasions there was a counseling by the counsels in USA to continue their marital life but she did not appear for the said counseling though he appeared with an intention to withdraw the divorce case, then she left the minor child of eight months old baby with him and abruptly left his company to India by giving 12 hours prior notice only, ever since he has been taking care of the minor child, he never demanded any dowry or additional dowry and there is no matrimonial dispute as contended by her. They are all invented for the purpose of the case. His case is that the minor child was born in USA and the said baby is a citizen of America. He filed a petition before the XVII Circuit Court for the county of Kent Family Division in the State of Michigan viz., Case No.18-09176-DM. Then the court at Michigan ordered for custody of the minor child to him as per the orders dated 08.03.2019. The minor child is growing healthy in his custody and the court at Michigan examined all the material aspects of the minor child and granted custody to him. Suppressing all these facts she filed the above said guardian OP and the interlocutory application before the

court below in India making claim of the custody of the minor child illegally.

8. In view of the above said rival contentions and averments, the court below framed the following points that arise for consideration in the above said IA at paragraph 14 of the order, which reads as follows:

> *"1. Whether this court is having jurisdiction to entertain the present petition under Sections 7 and 25 of Guardian and Wards Act (8 of 1890)?*
>
> *2. Whether the petitioner/Atheesh Sanka can claim the custody of minor daughter Sanka Akshaya, who born on 05.04.2018 in USA?"*

9. On hearing both the counsels of the parties, the court below held both the points in favour of the respondent herein/petitioner therein and allowed the IA through its order dated 08.12.2020 and the operative portion of the same is as follows:

> *"30. In view of the answers in Points No.1 and 2, it is a fit case to handover the custody of the minor child (Sanka Akshaya) to the petitioner with the following conditions:*
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> 1. *Respondent/Sanka Atheesh, who is husband of petitioner is hereby directed to handover the minor child (Sanka Akshaya) to the petitioner in India within a period of three months from the date of this order (The respondent who residing at USA has to take minor child (Sanka Akshaya) from USA to India, he has to comply several formalities to bring the child to India and therefore, this court feels a reasonable time should be granted to the respondent and accordingly, three months time granted to the respondent to bring the child (Sanka Akshaya) to India;*

2. *Respondent is hereby directed to take all necessary steps to shift the minor child (Sanka Akshaya) from USA to India;*
3. *Petitioner is hereby directed to allow the respondent to see the minor child through Video-Call or Whats-App call or Skype whenever required by the respondent;*
4. *Petitioner is hereby directed to permit the respondent to see the minor child at India physically whenever he came to India and made a request to see the child (Sanka Akshaya) and the petitioner further directed to allow the respondent to see the minor child (Sanka Akshaya) once in ten days when the respondent stay in India.*

10. At this stage the learned counsel for the appellant submits that the court below grossly erred in allowing the above said IA by granting custody of the minor child to the respondent herein though it has no territorial jurisdiction to entertain the main OP under the Act since the said female baby/the minor child is a Citizen of USA. Be that as it may, the court below ought to have seen the welfare of the child as a paramount consideration and continued with the custody of the appellant herein instead of disturbing the same at this juncture. Further the appellant and his baby never visited India after she abandoned them and left to India. Anyhow he has been managing both his office work and upbringing of the child successfully and the baby is also adjusted much there in USA. The court below erred in ordering the change of custody of the minor child at this juncture from the father to

mother as an interim measure, that too in the prevailing COVID-19 pandemic situation.

11. On the other hand, the learned counsel for the respondent submits that the court below has got all the jurisdiction to entertain the above said OP and the court below is justified in allowing the above said IA for the custody of the minor child to the mother/respondent herein as the minor baby is aged below five years and as such she is entitled for the same as a natural guardian under Indian Law.

12. Having regard to the above said facts and circumstances, it is true that the marriage took place between the parties in Kakinada in the State of Andhra Pradesh as per Hindu Rights and customs and both the parties are Indian citizens but as Non-Resident Indians they left to USA. During their stay they have begotten a female child (Sanka Akshaya) in the State of Michigan on 05.04.2018. It appears that the appellant herein approached the local court in USA and obtained custody of the minor child in the absence of the respondent herein. After returning to India she was constrained to institute the above said Divorce OP and file the above said interlocutory application in it. It appears that the appellant herein also filed another IA in the said OP for return of the plaint/ petition and the same is pending. The counsel for the appellant also submits that the said interlocutory application was not considered along with this I.A.No.1059 of 2019 in the said OP.

13. The above said contentions, averments and rival submissions would disclose that the main relief sought for in the above said OP and the relief sought for in the above said IA are one and the same and the court below in stead of determining the rights of both the parties at the interlocutory stage, the same should have been considered in the main OP itself. In fact the parties are not yet subjected to trial and no opportunity was given yet to mark their respective documents in the main OP in order to substantiate their respective claims. The issues of territorial jurisdiction of the court below, entrusting the custody of the minor child born in USA to the parent in India residing in the State of Andhra Pradesh and the applicability and binding nature of the order of the Foreign Court with respect to the custody of the minor child shall yet to be gone into in the main OP by the court below. At this stage disposing of the IA summarily with the two points framed as mentioned supra is unwarranted and amounts to finality on an incomplete adjudication without determining the rights of the parties.

14. Hence, the order under appeal is set aside directing the court below to dispose of the main OP on the above said core "issues" and the other issues which may arise basing upon the rival pleadings after subjecting them to trial and hearing as per law as expeditiously as possible preferably within six months from the date of receipt of this order.

15. Insofar as the custody of the child pending disposal of the guardian OP is concerned, both the parties shall maintain *status quo* as on today and it is open for the court below to order for production of the minor child by the parent having the custody as and when it is required while deciding the main OP itself and passing of final orders in it.

16. Accordingly, the Civil Miscellaneous Appeal is disposed of. There shall be no order as to costs.

As a sequel, the miscellaneous applications pending, if any, shall stand closed.

JUSTICE C.PRAVEEN KUMAR

JUSTICE B. KRISHNA MOHAN

September 21st, 2021
LMV

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